Schedule TMDL Sheet 1
TRANSFERRED MUNICIPAL DEPARTING LOAD

APPLICABILITY

This Schedule is applicable to customers that have Transferred Municipal Departing Load (TMDL) as defined in Special Condition 1.a. below and in Preliminary Statement Part W.1.a., and who will have all or a portion of their load served by a Tribal Utility as defined in Special Condition 1.d. or a local publicly-owned electric utility as defined in Special Condition 1.b (each a POU). This Schedule is also applicable to "New Party" customers who assume responsibility for TMDL as defined in Special Condition 1.c.

TERRITORY

Applicable to SCE's service territory as it existed on February 01, 2001.

RATES

Except for the exemption(s) listed in Special Condition 2 of this Schedule, TMDL customers are responsible for both the Departing Load (DL) Nonbypassable Charges (NBC) and the Cost Responsibility Surcharges (CRS) listed below.

DL NBC and CRS are also the responsibility of any new person or entity (party) occupying a premises having TMDL. The load of a New Party in a change of TMDL customer situation is not new load but existing load.

The rate components for the Wildfire Fund Non-Bypassable Bond Charge (WFC), Nuclear Decommissioning Charge (NDC), Public Purpose Programs Charge (PPPC), ongoing Competition Transition Charge (CTC), Power Charge Indifference Adjustment (PCIA), and Fixed Recovery Charge (FRC)[1] are set forth Schedule DL-NBC and Schedule DA-CRS. (T)

On July 1, 2006, the PCIA superseded and replaced the DWR Power Charge (DWRPC) such that after July 1, 2006, applicable customers no longer incur additional DWR Power Charges but instead incur PCIA charges. Pursuant to D.19-08-022, beginning October 1, 2019 and retroactive to January 1, 2017, the 2001 PCIA Vintage factors no longer include the above-market costs of legacy Utility Owned Generation (UOG). (T)

The consumer will not be billed a negative PCIA if the sum of the CTC and PCIA charges results in a negative value. If the total indifference rate (i.e. the sum of the CTC and PCIA) is less than zero, the negative indifference amount will be used to offset future positive indifference amounts after September 1, 2006. The resulting CRS will not produce a net payment or credit to the TMDL consumer. (L)

To the extent FRC is collected as part of DL-NBC, it should not be collected as part of CRS (N)

(D)

[1] SCE has been permitted to issue bonds that enable it to recover more quickly certain costs related to preventing and mitigating catastrophic wildfires, while reducing the total cost to its customers. The Fixed Recovery Charge (FRC) has been approved by the CPUC to repay those bonds. The right to recover the FRC has been transferred to a separate entity (called the Special Purpose Entity) that issued the bonds and recovery does not belong to SCE. SCE is collecting the FRC on behalf of the Special Purpose Entity.

(Continued)

Schedule TMDL Sheet 2
TRANSFERRED MUNICIPAL DEPARTING LOAD

DL NBC

TMDL customers are responsible for the following DL NBC components and as discussed in Schedule DL-NBC: (1) NDC, (2) PPPC, (3) the ongoing CTC, and (4) FRC. (T) (T)

The DL NBC are applicable to TMDL customers that departed on or after December 20, 1995 to be served by a POU. The DL NBC will be billed as described below.

1. The NDC bill component is calculated by multiplying the kWh for the billing period by the applicable NDC.

2. The PPPC bill component, if applicable, is calculated by multiplying the kWh for the billing period by the applicable PPPC.

3. The ongoing CTC bill component is calculated by multiplying the kWh for the billing period by the applicable ongoing CTC.

4. The ongoing FRC bill component is calculated by multiplying the kWh for the billing period by the applicable ongoing FRC.

CRS

TMDL customers are responsible for the following CRS components and as specified in Schedule DA-CRS: (1) WFC, (2) PCIA charge, and (3) FRC as appropriate. (T) (T)

The CRS is applicable to TMDL customers that took Bundled Service on or after February 1, 2001 and subsequently are served by a POU, as defined in Special Condition 1.b. of this Schedule. The CRS will be billed as described below.

1. The WFC is calculated by multiplying the kWh for the billing period by the applicable WFC. (T)

2. The PCIA charge is calculated by multiplying the kWh for the billing period by the applicable PCIA charge.

3. The FRC is calculated by multiplying the kWh for the billing period by the applicable FRC. (N)

(Continued)

Schedule TMDL Sheet 3
TRANSFERRED MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS

1. Definitions.

   a. Transferred Municipal Departing Load (TMDL) – TMDL is load at a premises that was served by Bundled Service or Direct Access or Community Aggregation or Community Choice Aggregation from SCE, on or after December 20, 1995, which departed to be served by a publicly owned utility (POU). For purposes of this Schedule, TMDL does not include "new load," as that term is defined in SCE's Schedule NMDL, New Municipal Departing Load and in Decision 03-07-028.

   b. Local Publicly Owned Electric Utility - A POU is an entity that qualifies as such under Public Utilities Code Section 224.3.

   c. New Party – A "New Party" is defined as a new TMDL customer that either: 1) occupies, and will begin to consume electricity at, TMDL premises; or 2) assumes liability for the charges at TMDL premises.

   d. Tribal Utility is a federally recognized California Indian Tribe that owns electric systems and is operating as a public utility furnishing electric services to customers.

2. DL NBC and CRS Component Exemptions

   a. TMDL, that departed prior to February 1, 2001, is exempt from the WFC and the PCIA (formerly DWR Power Charge). (T)

   b. PCIA Charge Exemption

      1) The Commission has found that TMDL that is served by POUs in existence and serving at least 100 consumers on or before July 10, 2003 may be eligible for a residual PCIA charge exemption described in Section 2.b.2 below. The Commission has found that the following entities meet the aforementioned eligibility criteria:

         Alameda, Anaheim, Azusa, Banning, Biggs, Burbank, Calaveras, City and County of San Francisco, Colton, Corona, Glendale, Gridley, Healdsburg, Hercules, Lodi, Lompoc, Los Angeles, Needles, Palo Alto, Pasadena, Pittsburg, Port of Stockton, Redding, Riverside, Roseville, Santa Clara, Shasta Lake, Tuolumne, Ukiah , and Vernon.

         Pursuant to D.06-03-044, those POUs who served at least 100 Direct Access (DA) or DL Customers in SCE's service territory on July 10, 2003 may apply to the Commission to be added to this list.

(Continued)

Schedule TMDL Sheet 4
TRANSFERRED MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

2. DL NBC and CRS Component Exemptions (Continued)

b. PCIA Charge Exemption (Continued)

2) A residual PCIA charge exemption up to the amount of the PCIA charge exemption allocated to, but not used by, TMDL located in the geographic areas of the entities covered by PG&E's 2000 Bypass Report (i.e., entities named in the Report) shall be made available on an annual first-come, first-served basis to the TMDL of the entities described in Section 2.b(1) above, except that pursuant to D.04-11-014 priority shall be given to load transferring from PG&E Bundled Service. The PCIA charge exemption for TMDL located in the geographic areas covered by PG&E's 2000 Bypass Report is subject to the following annual limits:

- Modesto Irrigation District – 190,220 MWh
- Merced Irrigation District – 340,844 MWh
- South San Joaquin Irrigation District Condemnation Area – 21,605 MWh
- Laguna Irrigation District Condemnation Area – 35,583 MWh
- Redding, Roseville, Lodi, Davis, and Brentwood Annexation Areas – 151,506 MWh

c. Pursuant to PU Code Section 367, the obligation to pay ongoing CTC cannot be avoided by the formation of a POU on or after December 20, 1995. All TMDL customers subsequent to December 20, 1995 pay the ongoing CTC.

d. TMDL customers of POUs, who were not formerly Bundled Service Customers of SCE, are exempt from ongoing CTC only if they do not use SCE's Transmission and Distribution facilities.

e. Any TMDL consumer already paying a public purpose programs charge (PPPC) through another entity is exempt from paying PPPC under this Schedule.

SCE at its discretion may require documentation to verify the components that are billed to the TMDL consumer through another entity to verify the applicable exemption amount, if any. (N) | (N)

(Continued)

Schedule TMDL Sheet 5 (T)
TRANSFERRED MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures Applicable to Transferred Municipal Departing Load Service.

Bilateral agreements between SCE and the respective POUs or POU customer can be used as an alternative to the process set forth in this Schedule. If such an alternative mechanism or arrangement is not agreed to, SCE will utilize the following procedures.

However, if, at the time the customer notice described below is due, and SCE has entered into, or agreed to enter into, bilateral discussions with a POU or a POU customer, then the notice requirement for the applicable TMDL customer(s) taking service from that POU may be suspended until such time as SCE and POU, or POU customer, reach agreement on the CRS and other NBC obligations, or SCE determines that a bilateral agreement will not be feasible. If a bilateral agreement is reached that resolves the CRS and other DL-NBC obligations, then the customer notice requirement is extinguished.

If the CRS and other DL-NBC obligations are not resolved through bilateral negotiations, then SCE shall send the customer notices required in this paragraph within 15 days of concluding such bilateral negotiations.

a. Notification Process for Transferred Municipal Departing Load Customers.

SCE will send the TMDL customer a notice of its obligation to pay the DL NBC and CRS pursuant to D.03-07-028, as modified by D.03-08-076, and D.04-11-014 and request information from the customer. The notice will be given in writing either to the customer's mailing address, delivered to the customer's service address or e-mail address. The notice will ask the TMDL customer to specify the following:

(1) The date on which the TMDL customer will reduce or discontinue its electric service (Date of Departure);

(2) A description of the load that will qualify as TMDL;

(3) The SCE account number(s) assigned to this load; and

(4) If notification is by the TMDL customer, the name of the POU from which the TMDL customer will take service; and

Failure to provide the requested information including all the elements specified above and/or pay any amounts owed within 30 days from the date of SCE's notice will constitute a violation of this Schedule and a breach of the consumer's obligations to SCE, entitling SCE (subject to the provisions of Special Condition 3.g., Dispute Resolution and 3.h., Opportunity to Cure) to collect DL NBC and CRS from the customer on a lump sum basis.

(Continued)

Schedule TMDL Sheet 6
TRANSFERRED MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures for Taking Transferred Municipal Departing Load Service (Continued)

b. Identification of Eligible Exemptions.

SCE shall identify for the TMDL customer, exemptions specified in Special Condition 2 for which the account may be eligible.

c. Billing Method.

SCE in its sole discretion may elect to bill the TMDL customer to collect the DL NBC and CRS on a lump sum basis. (N) (N)

For the account to be billed based on metered usage, the TMDL customer or the POU with the customer's permission must provide the metered usage to SCE in a format acceptable to SCE. If SCE does not have access to the metered usage in an acceptable format, the TMDL customer will be billed based on the TMDL customer's historical load as described in Special Condition 4 of this Schedule.

d. Notice and Procedure for Change of Existing TMDL Customer.

TMDL customers that intend to vacate their premises or otherwise take action to terminate their liability for DL NBC and CRS, in whole or in part, shall give notice to SCE as soon as practicable. With the customer's permission, notice may also be given by the POU. TMDL customers shall be liable for applicable DL NBC and CRS until SCE receives notice from the TMDL customer or until SCE has actual notice that the customer no longer occupies or is responsible for the TMDL at the premises.

(1) The TMDL customer notice to SCE shall include the date on which the termination of liability is intended to become effective and the reason for the termination of service such as vacating the property or change of ownership of the property.

(2) SCE will stop billing the TMDL customer for the DL NBC and CRS on the effective date of the termination of liability.

(3) If the notice of termination is disputed by SCE, SCE will advise the TMDL customer in writing and state the reason(s) for disputing the notice.

(4) If the TMDL customer does not agree with SCE's response to the notice of termination, the TMDL customer may invoke the dispute resolution provisions of Special Condition 3.g.

(Continued)

Schedule TMDL Sheet 7 (T)
TRANSFERRED MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures for Taking Municipal Departing Load Service (Continued)

d. Notice and Procedure for Change of Existing TMDL Customer. (Continued)

(5) In determining the New Party's applicable charges, SCE will utilize the following meter data:

(a) The New Party's actual metered usage if provided to SCE by the New Party in a manner acceptable to SCE. The metered usage can be provided by either the New Party, or with the New Party's permission, the POU; and

(b) If the New Party does not provide SCE with this metered usage, as specified above, SCE will either 1) utilize the existing customer's historical metered usage for the New Party at the same premises or 2) estimate the New Party's usage if either the metered usage was not supplied by the existing customer for the New Party at the same premises, (ii) the existing customer requests at the time of termination that its historical metered usage not be released, or (iii) SCE determines that the existing customer's historical metered usage is inappropriate for the New Party.

e. Notice and Procedure for New TMDL Customer(s).

At least two (2) days in advance of taking electric service from a POU at a premises, the new TMDL customer, or the POU with the new TMDL customer's permission, shall notify SCE, in writing or by other reasonable means authorized by SCE, of the TMDL customer's intention to occupy the premises and assume responsibility for the DL NBC and CRS.

(1) The new TMDL customer or POU with the new TMDL customer's permission shall specify in the notice the date the person or agency will begin consuming electricity at the premises, all information specified in Special Condition 3.a. and, if known, the name of the prior TMDL customer or the SCE account number(s).

(2) SCE will issue a bill for the time period beginning with the date the new TMDL customer began to consume electricity at the premises.

(Continued)

Schedule TMDL Sheet 8 (T)
TRANSFERRED MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures for Taking Municipal Departing Load Service (Continued)

f. TMDL Customer's Obligation to Make Municipal Departing Load Payments.

SCE will issue monthly bills in accordance with the provisions of this Schedule and the Statement described in Section 3.c. of this Schedule. TMDL customers shall pay to SCE, the monthly charge within 20 days of receipt of the bill. Failure to pay two consecutive monthly payments constitutes a violation of this Schedule and breach of the TMDL customer's obligation to SCE. Opportunity to Cure this breach is described in Section 3.h. of this Schedule. SCE shall arrange for payment plans for any TMDL customer who indicates that it would otherwise have difficulty paying the amount owed.

g. Dispute Resolution.

For all disputes arising from the TMDL tariffs, the TMDL customer must notify SCE of the basis for any disagreements in writing. If the disagreement arises from the monthly charges billed under this Schedule then the customer must notify SCE of the basis for any disagreements in writing, within 20 days after receipt of the bill provided by SCE. If SCE does not accept the customer's position, it will respond in writing within 5 days after receipt of such notice. If the customer is not satisfied with SCE's response, within 14 days of receiving SCE's response the customer shall notify SCE in writing or by reasonable means through a designated SCE account representative authorized to receive such notification that the customer wishes to pursue informal dispute resolution. If the customer makes a timely request for informal dispute resolution, SCE and the customer shall promptly seek assistance in reaching informal dispute resolution from the Commission's Energy Division, or shall seek mediation of the dispute from the Commission's Administrative Law Judge Division. If the dispute is not resolved within 60 days of the customer's request to pursue informal dispute resolution, the customer may file a complaint with the Commission's Consumer Affairs Branch at http://www.cpuc.gov/complaints within the next 20 days. (SCE and the customer may also agree to extend this 20 day period, in order to allow for further negotiations or other resolution techniques.) In such events, the customer shall continue to be responsible for making the monthly DL NBC and CRS payments described in this Schedule, with such payments subject to future refund or other adjustment as appropriate if the Commission establishes that different information should have been used as the basis for the customer's Departing Load NBC/CRS Statement. Failure to file a complaint with the Commission within the specified period shall constitute agreement with and acceptance of the Departing Load CRS/NBC Statement.

(Continued)

Schedule TMDL Sheet 9 (T)
TRANSFERRED MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures for Taking Municipal Departing Load Service (Continued)

h. Opportunity to Cure.

If a TMDL customer fails to provide notice specified in Special Condition 3.a., 3.d., or 3.e., or fails to make two (2) DL NBC and CRS payments within the period specified in Section 3.f. of this Schedule then SCE shall send the TMDL customer a notice specifying its failure to comply with this tariff and provide the TMDL customer with the amount due, if applicable. The TMDL customer shall have 30 days from the date of the notice within which to take action curing its breach of its obligation to SCE.

(1) If the breach was a failure to provide notice, to cure the breach the TMDL customer must provide the notice required above, and pay any amounts that would have been assessed had the customer provided SCE with a timely notice.

(2) If the breach was a failure to pay two (2) or more consecutive monthly DL NBC and CRS payments, to cure the breach, the TMDL customer must pay all such delinquent monthly DL NBC and CRS payments plus a deposit equal to twice the total amount of the last two outstanding unpaid monthly DL NBC and CRS charge amounts.

i. Demand for Deposit.

If a TMDL customer's outstanding balance for the DL NBC and CRS is at least two months in arrears, and if the TMDL customer has failed to cure this breach after receiving at least one notice of Opportunity to Cure as specified above, then SCE may issue a Demand for Deposit. Such deposit shall be equal to twice the total amount of the last two outstanding unpaid monthly DL NBC and CRS charge amounts. In order to cure the outstanding breach pursuant to the provisions of this subsection, the TMDL customer must pay to SCE the entire amount of its outstanding unpaid account balance, together with either making payment for or supplying a letter of credit in the amount of the aforementioned deposit. These payments and deposit arrangements must all be made within 30 days of receipt of the TMDL customer's receipt of Demand for Deposit. Failure to pay the unpaid balance and establish the deposit within the 30-day period shall render the TMDL customer responsible instead for the default lump sum payment responsibility specified in Special Condition 3.k. below.

The provisions of this Special Condition will not apply in instances where the breach was a failure to provide notice as required above. Moreover this deposit procedure can be exercised only once. Future breaches for nonpayment would be treated under the rules described in Special Condition 3.k, below, for Demand for Lump Sum Payment.

(Continued)

Schedule TMDL Sheet 10 (T)
TRANSFERRED MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures for Taking Municipal Departing Load Service (Continued)

j. Return of Deposit.

If a customer deposit has been paid under the provisions of Section 3.i., or a letter of credit has been supplied in substitution for that deposit, SCE will review the customer's account status after the deposit or letter of credit has been held for twelve months. At that time, and if the customer has made all payments on a timely basis subsequent to the cure of the original breach, SCE will either refund the deposit or release the letter of credit, or at the customer's election apply any paid deposit as a credit against future payment requirements. Any amounts returned or credited in accordance with this provision shall include interest computed using the same rates as are applicable to all other electric utility customer deposits and utility balancing accounts.

k. Demand for Lump Sum Payment.

SCE may issue a Demand for Lump Sum Payment of Default DL NBC and CRS responsibility to a TMDL customer under any one of the following four (4) conditions: (1) failure to provide notice and subsequent failure to cure as specified in this tariff; (2) failure to establish a deposit; (3) failure, after having established a deposit, to make monthly payments to such an extent that the account has once again become at least two months in arrears; or (4) after having received the return of a prior deposit, failure to make subsequent future monthly payments to such an extent that the account has once again become at least two months in arrears.

The Demand for Lump Sum Payment of Default shall be, for each rate component, an amount equal to the Net Present Value of the TMDL customer's current and future DL NBC and CRS obligations using the most recent Commission adopted value of the SCE's weighted cost of capital as the discount rate for the period from when the customer's account began being in arrears and SCE's estimated date of the expiration of the customer's obligation to pay that rate component.

If a lump sum payment for a rate component is demanded and received, no subsequent consumer at the same premises shall be responsible for that component.

l. Partial Payment.

If a TMDL customer makes only partial payment on a bill, the partial payment received will be allocated among the components of the bill in proportion to the amount owed on each.

(Continued)

Schedule TMDL Sheet 11 (T)
TRANSFERRED MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures for Taking Municipal Departing Load Service (Continued)

m. Enforceability.

Failure to make the DL NBC and CRS payments or provide notice as specified herein constitutes a breach of the TMDL customer's continuing legal obligations to SCE and a breach and violation of this Schedule. After the TMDL customer has been given the Opportunity to Cure as specified in Special Condition 3.h., and after expiration of the 30 day period specified therein, SCE may enforce this obligation by making a Demand for Lump Sum Payment as described in Special Condition 3.k. If the Demand is not honored within 30 days of receipt of the Demand for Lump Sum Payment, SCE may enforce this obligation by filing suit in any court of competent jurisdiction.

4. Measurement of Municipal Departing Load for Transferred Load.

The TMDL customer's DL NBC and CRS obligations for Transferred Load will be based on metered usage. If the TMDL customer or the POU with the TMDL customer's permission does not provide metered usage in a manner acceptable to SCE, the TMDL customer's usage for billing the DL NBC and CRS will be based upon the customer's historical load at the time it discontinues or reduces retail service with SCE, using one of the two following options:

a. The TMDL customer's demand and energy usage over the 12-month period prior to the TMDL customer's submission of notice; or

b. The TMDL customer's average 12-month demand and energy usage, with such average to be as measured over the prior 36 months of usage; or

In the event the 12-month average usage differs from the 36-month average by an amount greater than 25 percent, the 36-month average will be used unless there is substantial evidence to demonstrate that the more recent usage is the result of a persisting change in the TMDL customer's electric usage, and that the 12-month average will be more indicative of the TMDL customer's future electric requirements.

Unless SCE is specifically notified otherwise, the default method will be the TMDL customer's demand and energy usage over the 12-month period prior to the TMDL customer's departure from SCE service.

(Continued)

Schedule TMDL Sheet 12
TRANSFERRED MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

4. Measurement of Municipal Departing Load for Transferred Load. (Continued)

In circumstances where the TMDL has been reduced following departure from SCE due to use of energy efficiency equipment or for other reasons, the TMDL customer and SCE may agree in writing to use metered or other data on a prospective basis to verify such load reduction for the TMDL. If a metering agreement is reached, SCE will adjust the calculation for TMDL payments.

If the TMDL customer has switched between applicable rate schedules or service voltages during the 36-month period prior to departure from SCE, the rate used will be the TMDL customer's final applicable rate schedule and service voltage. Where a TMDL customer provides reliable third-party metered usage data in a format acceptable to SCE, the rate schedules used for TMDL purposes shall be consistent with that metered information.

5. Notices

Notice to Customers or Consumers: Notices from SCE to a customer or consumer will be given in writing, either mailed, as defined in SCE's Rule 1, to the customer's or consumer's mailing address, or delivered to the customer's or consumer's service address or e-mail address.

Notice from Customers or Consumers: Notices from customer or consumer to SCE may be given in writing, either mailed, as defined in SCE's Rule 1, to SCE's mailing address, or delivered to SCE's e-mail address.

6. Removal, Rearrangement, or Relocation of SCE's facilities

Any necessary removal, rearrangement or relocation of SCE's existing facilities shall be performed in accordance with SCE's Rule 15 and Rule 16.

Removal, Rearrangement, or Relocation of SCE facilities will not commence until the TMDL customer obligation is satisfied unless SCE in its sole discretion agrees otherwise in a bilateral agreement reached, or SCE's notice issued, pursuant to Special Condition 3. (N) | (N)